



Notification Waiver Determination

Grafton Motor Group – Grafton Mazda

Acquisition	GTown Motors Pty Ltd (GTown Motors) applied for a notification waiver in respect of its proposed acquisition of a motor vehicle dealership business located in Grafton NSW known as Grafton Mazda, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.
Date of determination	27 August 2026

Parties to the Acquisition	The acquirer, GTown Motors, is a wholly owned subsidiary of Grafton Motor Group Pty Ltd (GMG). Houma Holdings Pty Ltd (Houma) is a majority (80%) shareholder of the shares in GMG. The remaining 20% are owned by Robert John Connell, an unrelated third party. Houma is the majority shareholder of several new and use motor vehicle dealerships within NSW and QLD. GMG operates a new and used motor vehicle dealership in Grafton NSW known as Grafton Motors. The dealership represents 3 vehicle brands, being Toyota, Suzuki and Hyundai. The target, Grafton Mazda, is operated by Ken Casson Motors Pty Ltd (Ken Casson Motors), and supplies new Mazda vehicles, as well as used motor vehicles. Ken Casson Motors also has an arrangement with Holden Australia for the supply of Holden parts. Both GMG and Grafton Mazda supply new and used cars, spare parts, car servicing and repair services, and finance.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the Act. Based on the information provided in the application, including the acquirer's (and its connected entities) revenues in Australia, the ACCC considers it is likely that, if the Acquisition were put into effect, the notification thresholds would be met. The ACCC is unable to reach a view that the Acquisition would not be likely to raise competition issues in any market based on the information provided, given: the Acquisition would combine the largest dealership of new and used cars in the local Grafton region of NSW

	with one of only two other new and used car dealerships in that region b. the merged entity's combined share of supply of new and used cars in the Grafton region of NSW may be significant c. there is uncertainty regarding the extent to which the merged entity would be likely to face intra-brand and inter-brand competition from alternative dealerships in the Grafton region and the surrounding areas more broadly. The ACCC considers that the Acquisition warrants consideration through the notification process, including further information gathering and consultation with third parties. Given the above, the ACCC has determined not to make the notification waiver determination applied for. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act